
Homeowners' Meeting

Landings Development Phase VII and VIII

Feb 19, 2023

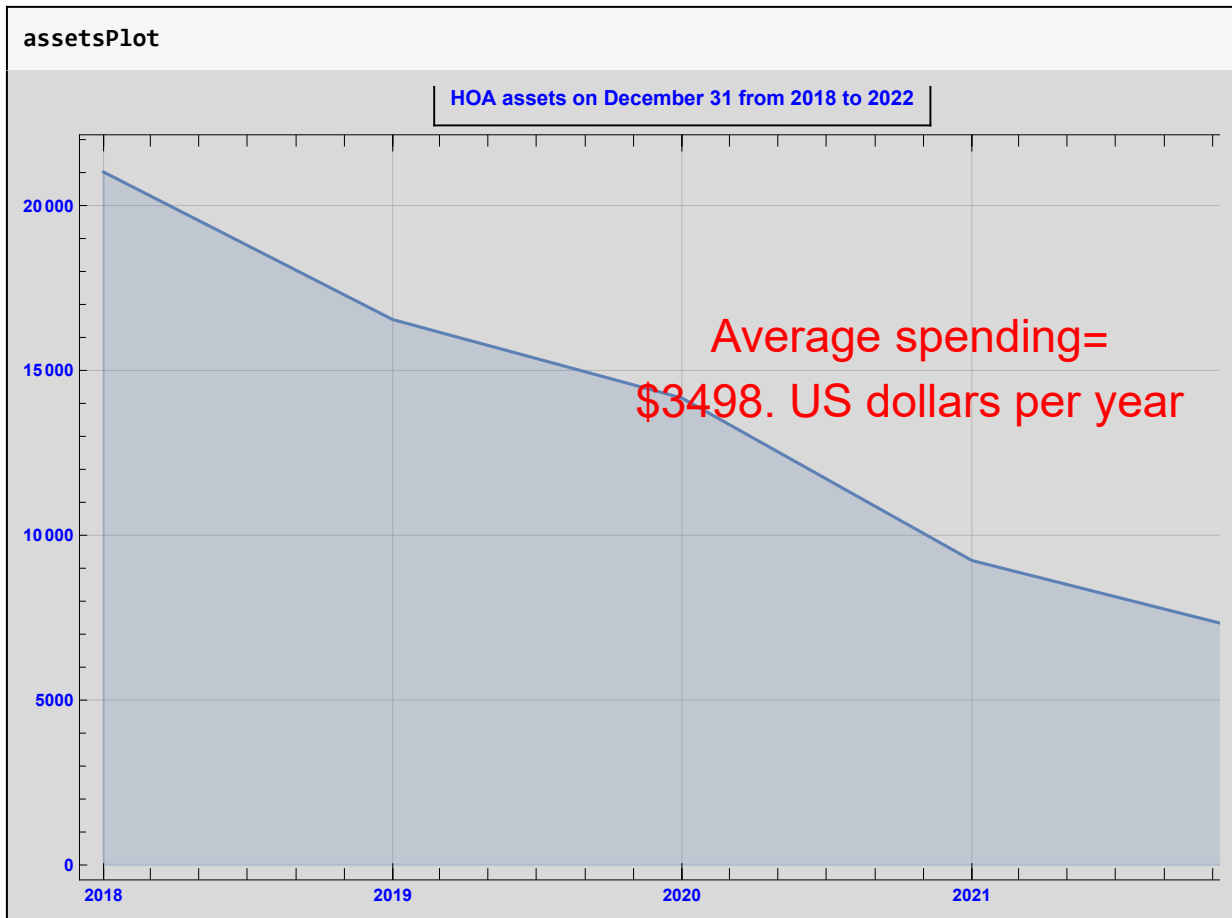
The Station Break

Welcome!

- Name tag
- Data sheet (name, address email, etc)
- Welcome to new neighbors.
- Thanks to Travis and Lainey Burak for distributing flyers!
- “State of the union”
 - Financials
 - Upcoming issues
 - Importance of good data and good communication (and being involved)
- Nominations for HOA Board
 - In particular, those willing to be President, Secretary, or Treasurer
 - Thank you Debbie Banda for stepping up already! (secretary)

State of the union

HOA assets at the end of each year -- 2018 to 2022



- The atypical steep decline between 2020 and 2021 was due to a late “surprise” bill (\$2000) from the lawyer (Metz-Bailey-McLoughlin)
 - Part of early negotiations with the city of Mt Vernon in attempt to have them take over the dam (unsuccessful).

Expenses in 2022 (typical)

expenses2022Table			
Item	Amount (yearly)	Amount (monthly)	% of Total
Insurance	\$1 246.00	\$103.83	41%
Mowing	\$1 200.00	\$100.00	39%
WRP accounting	\$550.00	\$45.83	18%
Office supplies	\$50.00	\$4.17	2%
Bank fees	\$1.00	\$0.08	0%
Legal	\$0.00	\$0.00	0%
Total	\$3 047.00	\$253.92	100%

HOA insurance:

- It works the same way other insurance policies do: protecting against property and liability claims. If community property gets damaged or if someone sues the HOA, the insurance company will review the claim and determine what is covered.
- Incidentally, not all lawsuits against HOAs are for physical injuries. Residents sometimes sue over things such as how board elections are publicized or how regularly the common areas are maintained.

Cost of continuing

- It is clear we will run out of money in about two years.
- If we want to continue, we'll have to bring back annual dues.
- Fortunately, it won't cost much, assuming business as usual:
- Approximate dues per lot owner per year: \$45.45
 - Assumes \$3500/yr expenses and 77 lot owners.

Quantity[Round[3500 / 77, .01], "USDollars"]
\$45.45

Q: What do you get for your money?

A: The HOA --

- Reviews proposed new construction/landscaping or changes.
- Enforces the “deed restrictions” (aka “building and development restrictions” or “covenants”).
- Maintains standards, thus helping to preserve property values.
- Pays to have the empty lot mowed (on Woodlake Trail close to lake).
- Miscellaneous as needed (road signs, street lighting, etc.).
- Also, in the past, the board has negotiated with the city of Mt Vernon concerning the dam/lake ownership issue.

Issues that need resolution

- Some homeowners wish to install solar panels.
- They are currently prohibited by the deed restrictions.
- However, the deed restrictions can only be changed by a majority vote of the HOA (all 77 lot owners, not just the board)
- From “ *Declaration of Building and Development Restrictions for the Landings Development Phase VIII*” Covenant 22 Modification: “These restrictions can be modified by a **majority** of the lot owners in the subdivision.”
- This is why it is important to get everyone informed and involved.

Do we want to continue as an HOA?

- The lawyers advise us not to fade away at this time, since it might look like we are trying to dodge the lawsuit on a technicality.
- It should not be decided by the action of a few, nor by default, i.e. *no* action.
- Hence the importance of the participation of all of the homeowners.

Definition of “Quorum” from *Covenants and By-Laws*

More evidence of the need to have everyone informed and involved

1. Article IV (Membership) Section 7 **Quorum**: “A **quorum** shall consist of at least ten percent (10%) of the entire Membership entitled to vote [i.e. one designated owner for each property], represented in person or by proxy. The vote of the majority of such quorum at a duly constituted meeting shall be necessary for the adoption of any matter voted upon by the Members.”
2. Article V (Board of Trustees) Section 6 **Quorum**: “A majority of the entire Board of Trustees shall constitute a **quorum** for the transaction of business. If the President is unable to chair the meeting, he/she shall designate a Board Member to conduct the meeting.”
3. Article XII (Amendments to Articles): “These articles may be **altered, amended, or repealed** and **new articles may be adopted** by a vote of Fifty percent (50%) of the Members of the Association, if at least fifteen (15) days prior to the meeting, written or electronic notice is given of the intention to alter, amend, or adopt new articles at such a meeting.”

Conclusions

- Three upcoming issues require full knowledge and participation of the HOA members.
 - Homeowners dues again?
 - Solar panels?
 - Whether or not to continue the HOA?
- Therefore it is important to have a vibrant, proactive board of trustees, and
- It is also important to have good communication with all homeowners --
 - Meaning at least a well-maintained accurate database of names and addresses.

Current HOA board of trustees and what we need to move forward

- Currently 6 members (in alphabetical order): Nuh Aydin, Cynthia Cunningham, Mark Long, Matt Snow, Mike Ulrey (treasurer), Andrea White.
 - I hope they intend to continue!
- We need a president or secretary (currently we don't have either).
- We need a new treasurer (I would like to pass the torch -- I will have been treasurer for 4 years by summer 2023).
- These could come from the current board or some new volunteers from the HOA membership at large.
- In fact, Debbie Banda, one of our new residents, has graciously volunteered to be the new secretary. Yea!

Nominations

- Debbie Banda for secretary.
- President?
- Treasurer?
- Other board member volunteers?

Initialization

```
dates = DateObject[{#}] & /@ {2018, 2019, 2020, 2021, 2022};
expenses =
  Quantity[#, "USDollars"] & /@ {21015.68, 16541.78, 14163.10, 9234.65, 7022.32};
```

```
ts = TimeSeries[Table[{dates[[i]], expenses[[i]]}, {i, 1, Length[dates]}]];
annualExpAve = 
$$\frac{\text{expenses}[[1]] - \text{expenses}[[ - 1]]}{\text{dates}[[ - 1]] - \text{dates}[[1]]}$$
;
assetsPlot = DateListPlot[ts, Filling → Axis,
  GridLines → Automatic, LabelStyle → Directive[Blue, Bold], ImageSize → Medium,
  PlotLabel → Text@Style["HOA assets on December 31 from 2018 to 2022", Blue, Bold],
  Epilog → Text[Style["Average spending=" <> "\n$" <>
    ToString[Round[annualExpAve, 1.0]], Red, Large], {{2020, 10, 15}, 15000}]];
```

```
expenseItems = {"Insurance", "Mowing",
  "WRP accounting", "Office supplies", "Bank fees", "Legal", "Total"};
amountsYr = Quantity[#, "USDollars"] & /@ {1246.00, 1200.00, 550.00, 50.00, 1.00, 0.00};
amountsMth =
  Quantity[# / 12, "USDollars"] & /@ {1246.00, 1200.00, 550.00, 50.00, 1.00, 0.00};
amountsYrWithTotal = Append[amountsYr, Total[amountsYr]];
amountsMthWithTotal = Append[amountsMth, Total[amountsMth]];
percents = Round[amountsYrWithTotal / amountsYrWithTotal[[ - 1]], .01];
collabels = Text@Style[#, Bold, Blue] & /@
  {"Item", "Amount \n(yearly)", "Amount \n(monthly)", "% of Total"};
expenses2022Table =
  Grid[Prepend[Transpose[{expenseItems, amountsYrWithTotal, amountsMthWithTotal,
    Map[PercentForm, percents]}], collabels], Dividers → {{False, True}, All}];
```